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Intergovernmental negotiating committee to develop an international legally binding instrument on plastic pollution, including in the marine environment
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Preparation of an international legally binding instrument on plastic pollution, including in the marine environment

Glossary of key terms

Note by the secretariat

1. Pursuant to paragraph 5 of United Nations Environment Assembly resolution 5/14, entitled "End plastic pollution: towards an international legally binding instrument", an ad hoc open-ended working group met in Dakar from 30 May to 1 June 2022 to prepare for the work of the intergovernmental negotiating committee to develop an international legally binding instrument on plastic pollution, including in the marine environment. The open-ended working group agreed on a list of documents that the secretariat would provide to the intergovernmental negotiating committee at its first session. Among other things, the secretariat was requested to develop a glossary of key terms.

2. The annex to the present note has been prepared in response to the request of the ad hoc open-ended working group. It sets out information on terms used in Environment Assembly resolution 5/14 that may be relevant to the development of the international legally binding instrument on plastic pollution, including in the marine environment (hereafter the instrument) as well as terms that may be related to those used in the resolution.[1] The secretariat has provided three categories of terms: terms used in resolution 5/14 that have definitions already adopted or endorsed by an intergovernmental process; terms used in resolution 5/14 that do not have definitions adopted or endorsed by an intergovernmental process but that may be relevant to the development of the instrument; and terms not used in resolution 5/14 that may be related to those used in the resolution and that have definitions adopted or endorsed by an intergovernmental process. Common legal terms used in treaty negotiations and processes have not been included in the annex but can be found in the treaty handbook prepared by the Treaty Section of the Office of Legal Affairs[2] and in the glossary of terms for negotiators of multilateral environmental agreements[3] prepared by the United Nations Environment Programme, among other sources.

* UNEP/PP/INC.1/1.

[1] Note that terms used in resolution 5/14, as well as terms that may be related to those used in that resolution, can be found in a number of glossaries, including those of the Intergovernmental Science-Policy Platform on Biodiversity and Ecosystem Services (see https://ipbes.net/glossary), the Intergovernmental Panel on Climate Change (see https://apps.ipcc.ch/glossary) and the International Resource Panel (see https://www.resourcepanel.org/glossary).

[2] *Treaty Handbook* (United Nations publication, Sales No. E.12.V.1), p. 62.

[3] United Nations Environment Programme, *Glossary of Terms for Negotiators of Multilateral Environmental Agreements* (Nairobi, 2007).

Annex

Glossary of key terms

I. Terms used in Environment Assembly resolution 5/14 that have definitions adopted or endorsed by an intergovernmental process

Environmentally sound waste management means taking all practicable steps to ensure that hazardous wastes or other wastes are managed in a manner which will protect human health and the environment against the adverse effects which may result from such wastes.[1]

Impact means any effect caused by a proposed activity on the environment, including on human health and safety, flora, fauna, soil, air, water, climate, landscape and historical monuments or other physical structures or the interaction among those factors. It also includes effects on cultural heritage or socioeconomic conditions resulting from alterations to those factors.[2]

Microplastics refers to plastic particles less than 5 millimetres in diameter, including nano-sized particles.[3]

Resource efficiency, in general terms, describes the overarching goals of decoupling,[4] increasing human well-being and economic growth while lowering the amount of resources required and negative environmental impacts associated with resource use.[5]

Sustainable production and consumption refers to the use of services and related products which respond to basic needs and bring a better quality of life while minimizing the use of natural resources and toxic materials as well as the emissions of waste and pollutants over the life cycle of the service or product so as not to jeopardize the needs of further generations.[6] **Sustainable production** concerns the supply side, focusing on the economic, social and environmental impact of production processes, while **sustainable consumption** addresses the demand side, focusing on consumers' choices of goods and services, such as food, shelter, clothing, mobility and leisure, to fulfil basic needs and improve the quality of life.[7]

Technology transfer means the transmission of know-how, equipment and products to governments, organizations or other stakeholders. It usually also implies adaptation for use in a specific cultural, social, economic and environmental context.[8]

Traditional knowledge is the knowledge, innovations and practices of indigenous [peoples] and local communities embodying traditional lifestyles relevant for the conservation and sustainable use of biological diversity.[9]

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[1] Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal, art. 2 (8). The secretariat notes that the definition in the Basel Convention is used for environmentally sound management of hazardous wastes or other wastes.

[2] Convention on Environmental Impact Assessment in a Transboundary Context (Espoo Convention), art.1 (vii).

[3] United Nations Environment Assembly resolution 2/11, "Marine litter and microplastics", para. 1.

[4] Resource decoupling means delinking the rate of use of primary resources from economic activity. See the glossary compiled by the International Resource Panel (2021), available at https://www.resourcepanel.org/glossary.

[5] International Resource Panel glossary (2021). The secretariat notes that the report further defines this term for context-specific technical use, and that the more general definition found in the same report has been included in this document.

[6] This definition was provided by the Norwegian Ministry of Environment at the Oslo Symposium on Sustainable Consumption in 1994 and has since become the most widely accepted definition of the term "sustainable consumption and production". See document UNEP/GC.26/7 (2010), footnote 3.

[7] Commission on Sustainable Development, "Consumer protection: guidelines for sustainable consumption", E/CN.17/1998/5, annex, para. 7.

[8] United Nations Environment Programme, *Glossary of Terms for Negotiators of Multilateral Environmental Agreements* (Nairobi, 2007), p. 91.

[9] Convention on Biological Diversity, art. 8 (j); see also the ninth preambular paragraph of decision III/14 of the Conference of the Parties regarding the implementation of article 8 (j) and decision XII/12 (f), in which the Conference of the Parties decided to use the terminology "indigenous peoples and local communities" in future decisions and secondary documents under the Convention, as appropriate. The secretariat notes that the term used in Environment Assembly resolution 5/14 is "traditional knowledge, knowledge of indigenous peoples and local knowledge systems".

Traditional knowledge systems are based on values, beliefs, rituals and community laws and practices, as well as concepts and methods for land and ecosystem management. Some knowledge is of a highly sacred nature and therefore sensitive and not publicly available, even to members of the community or people concerned.[10]

Wastes means substances or objects which are disposed of or are intended to be disposed of or are required to be disposed of by the provisions of national law.[11]

Waste minimization includes strict avoidance, source reduction, direct reuse, reuse and recycling.[12]

II. Terms used in Environment Assembly resolution 5/14 that do not have definitions adopted or endorsed by an intergovernmental process but that may be relevant to the development of the instrument

Full life cycle approach[13]

Plastic pollution[14]

III. Terms not used in Environment Assembly resolution 5/14 that may be related to those used in the resolution and that have definitions adopted or endorsed by an intergovernmental process

Best environmental practices means the application of the most appropriate combination of environmental control measures and strategies.[15]

A more **circular economy**, one of the current sustainable economic models, in which products and materials are designed in such a way that they can be reused, remanufactured[,] recycled or recovered and thus maintained in the economy for as long as possible, along with the resources of which they are made, and the generation of waste, especially hazardous waste, is avoided or minimized, and greenhouse gas emissions are prevented or reduced, can contribute significantly to sustainable consumption and production.[16]

Extended producer responsibility (EPR) is an environmental policy approach in which a producer's responsibility for a product is extended to the waste stage of that product's life cycle. In practice, EPR involves producers taking responsibility for the management of products after they become waste, including: collection; pre-treatment, e.g., sorting, dismantling or depollution; (preparation for) reuse; recovery (including recycling and energy recovery) or final disposal. EPR systems can allow producers to exercise their responsibility by providing the financial resources required and/or by taking over the operational aspects of the process from municipalities. They assume the responsibility voluntarily or mandatorily; EPR systems can be implemented individually or collectively.[17]

Life cycle means the consecutive and interlinked stages of a product system, from raw material acquisition or generation from natural resources to final disposal.[18]

[10] E/C.19/2019/5, p. 2. The secretariat notes that the term used in resolution 5/14 is "traditional knowledge, knowledge of indigenous peoples and local knowledge systems".

[11] Basel Convention, art. 2 (1).

[12] Conference of Parties to the Basel Convention, "Set of practical manuals for the promotion of the environmentally sound management of wastes," document UNEP/CHW.13/4/Add.1/Rev.1, p. 8. The secretariat notes that the term used in resolution 5/14 is "minimization of waste".

[13] A working definition of "full life cycle approach" has been developed as a key term in document UNEP/PP/INC.1/7, entitled "Plastics science".

[14] A working definition of "plastic pollution" has been developed as a key term in document UNEP/PP/INC.1/7.

[15] Stockholm Convention on Persistent Organic Pollutants, art. 5 (f) (v).

[16] United Nations Environment Assembly resolution 4/1, "Innovative pathways to achieve sustainable consumption and production", fourteenth preambular paragraph.

[17] Conference of the Parties to the Basel Convention, "Revised draft manuals on extended producer responsibility and financing systems for environmentally sound management," document UNEP/CHW.14/5/Add.1, adopted in decision BC-14/3.

[18] International Organization for Standardization, "Environmental management – Life cycle assessment – Principles and framework", document ISO:14040:2006, s.3.1.

Life cycle assessment is a compilation and evaluation of the inputs, outputs and potential environmental impacts of a product system through its life cycle.[19]

Management (of wastes) means the collection, transport and disposal of hazardous wastes or other wastes, including after-care of disposal sites.[20]

Mechanical recycling means processing of plastics waste into secondary raw material or products without significantly changing the chemical structure of the material.[21]

Plastic means a solid material which contains as an essential ingredient one or more high-molecular-mass polymers and which is formed (shaped) during either manufacture of the polymer or the fabrication into a finished product by heat and/or pressure. Plastics have material properties ranging from hard and brittle to soft and elastic.[22]

Pollutant means a substance or a group of substances that may be harmful to the environment or to human health on account of its properties and of its introduction into the environment.[23]

Pollution of the marine environment means the introduction by man,[24] directly or indirectly, of substances or energy into the marine environment, including estuaries, which results or is likely to result in such deleterious effects as harm to living resources and marine life, hazards to human health, hindrance to marine activities, including fishing and other legitimate uses of the sea, impairment of quality for use of seawater and reduction of amenities.[25]

Re-use means use of a product more than once in its original form.[26]

Recycling means processing of waste materials for the original purpose or for other purposes, excluding energy recovery.[27]

[19] Ibid., s.3.2.

[20] Basel Convention, art. 2 (2). The secretariat notes that the definition in the Basel Convention is used for environmentally sound management of hazardous wastes or other wastes.

[21] International Organization for Standardization, "Plastics – Vocabulary", document ISO:472:2013, s.2.1697.

[22] Amendment to the annex of the Protocol of 1978 Relating to the International Convention for the Prevention of Pollution from Ships (MARPOL), resolution MEPC.201(62), annex, "Revised MARPOL annex V", regulation 1.13.

[23] Protocol on Pollutant Release and Transfer Registers to the Convention on Access to Information, Public Participation in Decision-Making and Access to Justice in Environmental Matters (Kyiv Protocol), art. II (6).

[24] The use of terms such as "man" and "mankind" to denote "humans", "humankind" or "humanity" is no longer considered acceptable in United Nations documents.

[25] United Nations Convention on the Law of the Sea, art. I (4).

[26] International Organization for Standardization, "Plastics –Vocabulary", document ISO:472:2013, s.2.1708.

[27] Ibid., s.2.1706.